

CONTRACT OF EMPLOYMENT

THIS CONTRACT is made this _____ day of _____ 202____

BETWEEN

[Name, registration number and address of employer company]
("the Company") of the one part;

AND

(Name) _____ (WN.KP. _____) of _____ (address) _____,
("the Employee") of the other part.

The Employee is willing to be employed by the Company, and the Company is willing to employ the Employee, on the terms and conditions hereinafter set forth. For the reasons set forth above, and in consideration of the mutual covenants and promises of the parties hereto, the Company and the Employee covenant and agree as follows:

1. Commencement of employment and duration

1.1 The employment shall commence on _____.

2. Job title

2.1 The Employee's job title is (eg. /Office Administrator/Clerk .

2.2 The Employee's normal duties are as below:

2.2.1 [eg:to handle all administrative, operation and office works related to the business of the Company]

2.2.2 [eg. to ensure the cleanliness and hygiene of the business premises]

2.2.3 _____.

2.3 In addition to the normal duties, the Employee may from time to time be required to render such other duties and services as may be necessary to meet the needs of the Company's business in _____.

3. Place of Work and Normal Working Hours

3.1 The Employee's place of work will be at the *office/business premise of the Company which is currently at _____.

3.2 Your normal hours of work per day will be as follows:
Monday to Saturday: _____am to _____am/pm and _____pm to _____pm.

4. Probationary period

- 4.1 The first ____ month(s) of your employment will be probationary.
- 4.2 The employment may be terminated within 24 hours' notice given in writing by the Company at any time during or at the end of this period with or without assigning any reasons.
- 4.3 Should the Employee wish to resign from the employment at any time during or at the end of this period, the Employee is required to give 24 hours' written notice to the Company.
- 4.4 The Company reserves the right to extend the Probationary period for another ____ month(s) if it deems necessary for assessing/reviewing the Employee's performance and suitability for continued employment.

5. Salary, bonus and advance wages

- 5.1 The basic salary at the commencement of the employment will be Ringgit Malaysia _____ (RM_____) only per month, payable on or before the 7th day after each calendar month.
- 5.2 Payment of bonus and annual increment (if any) is based on the Employee's performance, the Company's profit and the overall market/economic condition and is solely at the absolute discretion of the Company.
- 5.3 No advance wages will be payable.

6. Deductions

- 6.1 The Company reserves the right in its absolute discretion to deduct from the Employee's pay the Employee's contribution to Employees' Provident Fund (EPF), Social Security Fund (SOCSO), Employee's Insurance Scheme (EIS and any sums which the Employee may owe to the Company including, but without limitation, any overpayments or losses suffered by the Company as a result of the Employee's negligence or breach of Company's rules/terms of this Contract.

7. Rest Days and Public Holidays

- 7.1 The Employee is entitled to 16 paid Public Holidays that are gazetted under the Public Holidays Ordinance (Sarawak) and four of which, namely the National Day, the Birthday of the Yang Di-Pertuan Agong, the Birthday of Yang Di-Pertua Negeri Sarawak and the Labours' Day are compulsory. The remainder will be determined by the Company but regards will be given to the religion and customs of the employees.
- 7.2 The Company reserves the right to require the Employee to work on public holidays in return for which the Employee shall be entitled to extra holiday(s), equal to the period worked, whereby the Company shall arrange for the Employee to clear one (1) day paid holiday per month as provided under **Section 104(2) of the Ordinance.**

- 7.3 The Employee may also be required to work overtime in addition to the normal hours if instructed to do so by the Company, or if deemed necessary for the proper performance of the Employee's duties and the overtime allowance and payment shall be computed at the rate as provided in **Chapter XIV of the Ordinance**.

8. Annual leave

- 8.1 Upon confirmation as permanent employee, the Employee is entitled for paid annual leave of :
- (a) eight (8) days for every twelve (12) months of continuous service with the Company for the first two (2) years with the Company;
 - (b) twelve (12) days for every twelve months of continuous service with the Company from the third year onwards; and
 - (c) sixteen (16) days for every twelve months of continuous service with the Company from the sixth year onwards.
- 8.2 If the Employee's employment commences or terminates part way through the year, his or her entitlement to the annual leave during that year will be assessed on a pro rata basis and deductions from final salary due to the Employee on termination of employment will be made in respect of the annual leaves taken in excess of entitlement.
- 8.3 Annual Leave must be taken at times convenient to the Company and at least seven (7) days' advance notice to take Annual Leave must be given to the Company. [No more than ___ days' Annual Leave may be taken at any one time unless permission is being given by the Company through the Employee's Manager.]
- 8.4 Annual leave is to be taken during the year when such leave is due and may not be accumulated without prior approval and consent of the Company in writing.
- 8.5 The Employee is not entitled to paid annual leave during the Probationary period.

9. Sick Leave

- 9.1 The Employee shall, after examination by a registered medical practitioner duly appointed by the Company; or a medical officer of the General Hospital or Government Clinic, be entitled to paid sick leave of a maximum of fourteen (14) days in the aggregate in each calendar year.
- 9.2 The Employee shall not be entitled to paid sick leave for the period during which she is entitled to maternity benefit or for any period during which he or she is receiving any compensation for disablement under the Workmen's Compensation Act, 1952, or any periodical payments for temporary disablement under the Employees Social Security Act, 1969.

10. Notification of sickness or other absence

- 10.1 If the Employee is unable to attend work for any reason and the absence has not previously been authorized by the Company, the Employee must inform the Company of the fact of his/her absence and the full reasons for it on each working day of absence until the Company is provided with a medical certificate, failing which the Employee shall be deemed as absent without reason and may be subject to disciplinary action.
- 10.2 If the Employee is absent from work without any reason that shall be considered as taking unpaid leave without prejudice to the Company's right to impose disciplinary action against the Employee.

11. Maternity Leave

- 11.1 The Employee is entitled for a paid maternity leave of 60 days consecutively including the public holidays and weekends/rest days during the period for each childbirth to be granted in accordance with Section 84 of the Ordinance.

12. Notice

- 12.1 If the employment continues after the end of the probationary period, the period of notice to be given in writing by either party to terminate the employment shall be four (4) weeks' notice.

13. Breach and Termination

This agreement is breached and terminated when the Employee is guilty of misconduct, whether in the course of his/her duties or not, inconsistent with the fulfillment of the express or implied conditions of this agreement, including but not limited to the following:

- (i) For dishonesty particularly the misappropriation of the Company's assets of any kind including cash, fund and/or stocks;
- (ii) For stealing and/or taking goods without authorization of the Company;
- (iii) Indecent and immoral acts during working hours;
- (iv) Guilty of any criminal offences;
- (v) For wilful disobedience to lawful orders and instructions given by the Company and or insubordination;
- (vi) For lack of skill which the Employee has expressly or impliedly warrant himself/herself to possess;
- (vii) For absence from work without leave from the Company or absence without any reasonable excuse.

14. Other employment

- 14.1 The Employee must devote the whole of his/her time, attention and abilities during the hours of work for the Company to his/her duties for the Company. He/She may not, under any circumstances, whether directly or indirectly, undertake any other duties, of whatever kind during the hours of work for the Company;
- 14.2 The Employee may not without the knowledge and prior written consent of the Company engage, whether directly or indirectly, in any business or employment which could or might reasonably be considered by others to impair his/her ability to act at all times in the best interests of the Company.

15. Confidentiality

- 15.1 The Employee must not at any time during or after his/her employment, in any fashion, form, or manner, either directly or indirectly divulge, disclose, or communicate to any person, firm, or corporation in any manner whatsoever any information of any kind, nature, or description concerning any matters affecting or relating to the business of the Company or any information concerning the business of the Company, its manner of operation, or its plans, processes, or other facts of any kind, nature, or description without regard to whether any or all of the foregoing matters would be deemed confidential, material, or important. The parties hereby stipulate that as between them, the foregoing matters are important, material, and confidential and gravely affect the effective and successful conduct of the business of the Company, and its goodwill, and that any breach of the terms of this section is a material breach of this Agreement.

17. Compensation

- 17.1 The Employee shall be responsible to indemnify the Company for any loss or damages against the Company's Property as a result of the Employee's wilful acts and/or negligence.

18. Changes to the terms of employment

- 18.1 The Company reserves the right to make reasonable changes to any of the terms and conditions of employment and will notify the Employee in writing of such changes at the earliest opportunity and, in any event, within one month after such changes have taken effect.
- 18.2 Such changes will be deemed to be accepted unless the Employee notifies the Company of any objection in writing before the expiry of the notice period.

The remainder of this page is intentionally left blank.

IN WITNESS WHEREOF the parties have set their hands and seals the day and the year first above written.

The Company

.....
Signed by Authorized Signatory
Designation:

The Employee

ACKNOWLEDGEMENT

I, _____ I.C. No. _____ hereby confirm that I have read and fully understood the contents of this Contract of Employment and I hereby confirm my acceptance of all the terms and conditions herein.

Signed by the Employee

.....
Name:

Witness:

.....
Signature
Name:
I.C. No.